

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- **The court encourages remote appearances to save time, reduce costs, and increase public safety.** Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you **must** provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If **everyone** submits to the tentative ruling, call the clerk at **657-622-5231**. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 5/29/2026 10:00 AM

#	Case Name	Tentative
1	Callahan vs. Anderson 30-2024-01440872-CU-FR-CJC	Motion to be Relieved as Counsel of Record No tentative.
2	Nasr vs. Sasani 30-2025-01535146-CU-CR-CJC	Motion for Leave to File Amended Complaint Plaintiff Shadi Nasr's Motion for Leave to Amend Complaint is GRANTED. Defendant opposes the motion on grounds the proposed amended complaint lacks merit and raises allegations which have already been adjudicated by Judge Wersching in Case No. 20D007757.

		However, at this stage the court will allow leave to amend consistent with the liberal policy in favor of amendment. Plaintiff is ORDERED to file and serve the amended complaint within 5 days. Clerk to give notice.
3	Oh vs. Chen 30-2025- 01521231-CU- CL-CJC	Motion to Dissolve and Vacate Right to Attach Order and Writ of Attachment Defendant, Binbing Chen's motion to dissolve and vacate right to attach order and writ of attachment is OFF CALENDAR. Defendant is currently defaulted and cannot take affirmative steps in the litigation until default has been set aside. (See <i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 Cal.App.3d 381, 385.) Clerk to give notice.
4	Lopez vs. Kia America, Inc. 30-2025- 01456189-CU- BC-CJC	Motion for Judgment on the Pleadings Defendant Kia America, Inc.'s (Kia) Motion for Judgment on the Pleadings is GRANTED with 10 days leave to amend. <u>Second cause of action for implied warranty</u> Kia moves for judgment on the pleadings as to Plaintiff's second cause of action for breach of the implied warranty of merchantability on the ground it is time-barred. "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Co.</i> (2020) 46 Cal.App.5th 493, 495 [citation omitted].) The Song-Beverly Act provides the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase when accompanied by an express warranty of future performance spanning one year or longer. (Civ. Code, § 1791.1, subd. (c).) A claim for breach of implied warranty is not barred by the consumer's failure to report the defect within one year, as "[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1305.) "There is nothing that suggests a requirement that the purchaser discover and report to the

		seller a latent defect within that time period.” (Id. at p. 1310.) Plaintiff alleges he purchased the vehicle on 5/18/19 and defects were present at the time of the sale. (Compl. ¶¶ 8, 10, 43.) Plaintiff further alleges he first presented the vehicle for repairs in March 2022. (Compl. ¶ 11.) To the extent Plaintiff alleges a latent defect existed within the one-year period, Plaintiff’s claim is not barred based on a failure to report the defect within one year. At the latest, however, Plaintiff would have been required to file this action four years after the one-year implied warranty period expired on 5/18/20, or 5/18/24. As Plaintiff filed this action more than four years later on 1/24/25, his claim is time-barred. If Plaintiff chooses to amend, Plaintiff is ORDERED to file a red-lined and clean copy of the amended complaint. Kia to give notice.
5	Matthew P. Wade, in his capacity as TRUSTEE of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013 vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC	Motion for Leave to Intervene Non-party AZGuard Insurance Company’s unopposed Motion for Leave to Intervene is DENIED. AZGuard failed to timely serve notice of its motion. (Code Civ. Proc., § 1005, subd. (b).) Clerk to give notice.
6	Delta Group, Inc. vs. Jobran 30-2026-01550459-CU-NP-CJC	Order to Show Cause re: Preliminary Injunction Off calendar at moving party’s request.
7	To vs. Tu	Demurrer and Motion to Strike to Amended Cross-Complaint

	30-2023-01347925-CU-PN-CJC	Cross-Defendants Hoang Huy Tu and The Tu Firm, APLC's (collectively, "Tu Defendants") motion to strike the First Amended Cross-Complaint ("FACC") of Adore Escrow, Inc. ("Adore") is GRANTED. "Following an order sustaining a demurrer or a motion for judgment on the pleadings with leave to amend, the plaintiff may amend his or her complaint only as authorized by the court's order." (<i>Harris v. Wachovia Mortg., FSB</i> (2010) 185 Cal.App.4th 1018, 1023.) "The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend." (<i>Ibid.</i>) The Court's ruling on the prior demurrer did not give Adore leave to add new causes of action. The FACC filed 2/2/2026 (ROA 553) is STRICKEN. The 6/26/2026 hearing on cross-defendant, Provident Title Company's demurrer to FACC is VACATED, because there is no longer an operative pleading to demur to. The court will give Adore one final opportunity to amend the cross-complaint in strict compliance with the court's 1/23/2026 order. Adore is given 5 days leave to amend. If Adore chooses to amend, Adore is ORDERED to file a red-lined and clean copy of the amended pleading. Clerk to give notice.
8	Sweet vs. Albertsons Companies, Inc. 30-2025-01493893-CU-PO-CJC	Motion for Summary Judgment and/or Summary Adjudication of Issues Off calendar. The parties failed to comply with the court's 4/17/2026 order.